

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #02	CCRB Case #: 201501085	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/29/2015 3:30 PM	Location of Incident: 2444 East 22nd Street & 61st Precinct stationhouse	18 Mo. SOL 7/29/2016	Precinct: 61		
Date/Time CV Reported Fri, 02/13/2015 12:20 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 02/13/2015 12:20 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Idris Ademola	25467	946436	061 PCT
2. POF Lauren Au	10083	947893	061 PCT
3. POM Krzysztof Koncewicz	19305	952945	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Lauren Au	Abuse: At 2444 East 22nd Street in Brooklyn, PO Lauren Au frisked § 87(2)(b)	A . Substantiated
B . POF Lauren Au	Abuse: At 2444 East 22nd Street in Brooklyn, PO Lauren Au searched § 87(2)(b)	B . Unsubstantiated
C . POM Krzysztof Koncewicz	Abuse: At 2444 East 22nd Street in Brooklyn, PO Krzysztof Koncewicz searched § 87(2)(b)	C . Unsubstantiated
D . POM Idris Ademola	Abuse: At 2444 East 22nd Street in Brooklyn, PO Idris Ademola searched § 87(2)(b)	D . Miscellaneous
E . POM Idris Ademola	Abuse: At 2444 East 22nd Street in Brooklyn, PO Idris Ademola searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Exonerated
F . POF Lauren Au	Abuse: At 2444 East 22nd Street in Brooklyn, PO Lauren Au searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	F . Exonerated
G . POM Krzysztof Koncewicz	Abuse: At 2444 East 22nd Street in Brooklyn, PO Krzysztof Koncewicz searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	G . Exonerated
H . POM Idris Ademola	Abuse: At the 61st Precinct stationhouse, PO Idris Ademola strip-searched § 87(2)(b)	H . Miscellaneous
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 29, 2015, at approximately 3:30 p.m., § 87(2)(b) and § 87(2)(b) were pulled over in § 87(2)(b)'s vehicle by PO Idris Ademola, PO Lauren Au, and PO Krzysztof Koncewicz of the 61st Precinct in front of 2444 East 22nd Street in Brooklyn. § 87(2)(b) was found to have an open warrant and placed under arrest. During the vehicle stop, PO Au frisked § 87(2)(b) (**Allegation A**). PO Au, PO Koncewicz, and PO Ademola also allegedly searched § 87(2)(b) (**Allegations B, C, and D**). PO Ademola and PO Au searched the vehicle and found a quantity of Suboxone (**Allegations E and F**). PO Koncewicz also allegedly searched the vehicle (**Allegation G**). § 87(2)(b) was released with § 87(2)(b)'s vehicle and the officers transported § 87(2)(b) to the 61st Precinct stationhouse. At the stationhouse, PO Ademola allegedly strip-searched § 87(2)(b) (**Allegation H**). § 87(2)(b) was arrested for criminal

§ 87(2)(a) 160.50

§ 87(4-b) § 87(2)(g)

Mediation, Civil and Criminal Histories

- The case was not eligible for mediation as § 87(2)(b) was arrested.
- Neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim regarding the incident as of June 8, 2015 (BR02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and the first complaint in which § 87(2)(b) and § 87(2)(b) have been involved (BR05; BR06; BR07).
- PO Idris Ademola has been a member of the NYPD for seven years and has six previous CCRB allegations involving two cases with no substantiated allegations (see officer history).
- PO Lauren Au has been a member of the NYPD for six years and has five previous CCRB allegations involving four cases with no substantiated allegations (see officer history).
- PO Krzysztof Koncewicz has been a member of the NYPD for two years. This is his first CCRB complaint (see officer history).

Potential Issues

- The investigation was unable to interview PO Ademola or acquire his memo book as he is on Military Leave of Absence from the NYPD. § 87(2)(b) (BR08).

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Explanation of Subject Officer Identification

It is undisputed that PO Ademola, PO Au, and PO Koncewicz were the three officers present at the vehicle stop. PO Ademola is a black man, PO Au is an Asian woman, and PO Koncewicz is a white man. § 87(2)(b) provided reasonably accurate physical descriptions of all three officers. § 87(2)(b) who provided a telephone statement but failed to give a sworn statement, provided generally accurate descriptions, but described PO Koncewicz as an Asian man. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

PO Au admitted to frisking § 87(2)(b) § 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(b) alleged that the officers took turns searching him and § 87(2)(b) and that all three officers searched § 87(2)(b) § 87(2)(b) alleged that all three officers searched him at once. § 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(b) alleged that all three officers searched inside his vehicle. § 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(b) alleged that PO Ademola strip searched him at the stationhouse. § 87(2)(g) [REDACTED]
[REDACTED]

- **Allegation A—Abuse of Authority: At 2444 East 22nd Street in Brooklyn, PO Lauren Au frisked** § 87(2)(b) [REDACTED]

§ 87(2)(b) recounted that PO Ademola informed him that he had an open warrant, instructed him to exit the vehicle, led him to the rear of the vehicle, and handcuffed him (BR09; BR10). At this time, PO Au and PO Koncewicz brought § 87(2)(b) to the rear of the vehicle but did not handcuff him. They requested § 87(2)(b)'s identification and he provided it. PO Koncewicz returned to the RMP while PO Au patted § 87(2)(b)'s clothing and entered his pockets. According to § 87(2)(b) § 87(2)(b) was not handcuffed until after he had been lodged in the RMP and the officers found Suboxone inside the vehicle.

§ 87(2)(b) recounted that the officers brought him to the rear of the vehicle after § 87(2)(b) was removed and placed in the RMP (BR11). He alleged that all three officers patted his clothing and emptied his pockets at this time. He corroborated that he was not handcuffed until after officers found Suboxone in the vehicle.

PO Au recounted that she saw § 87(2)(b) and § 87(2)(b) moving around in the vehicle before the vehicle stopped, but when asked to describe the movements, PO Au could say only that she saw § 87(2)(b) and § 87(2)(b) moving their arms around (BR12). She also saw § 87(2)(b) reach to the sun visor but did not see an object in his hand when he did so. She did not see either man disappear from view or appear to reach under the dashboard. The movements she observed increased her suspicion of the men. She explained, “Because those are like lungeable areas. We don’t know if they would hide any weapons or anything that can hurt me or my partners.” Once the officers found that § 87(2)(b) had an open warrant, PO Ademola had him exit the vehicle, frisked and searched him, and handcuffed him. PO Au claimed that § 87(2)(b) exited the vehicle of his own volition at some point during this process. However, during her interview she variously stated that § 87(2)(b) exited the vehicle when PO Ademola was frisking § 87(2)(b) when PO Ademola was handcuffing § 87(2)(b) and after § 87(2)(b) was already handcuffed. § 87(2)(b) said, “Why are you taking him? Why are you taking him?” when he exited the vehicle. He walked to the rear of the vehicle and PO Au told him to stop and that § 87(2)(b) was being arrested. When asked if § 87(2)(b) complied with her instruction, PO Au said, “He kept on coming towards us. And we’re like, you know, trying to keep them apart, cause my partner’s still trying to frisk him.” PO Au pushed § 87(2)(b) in the chest with both hands. When asked if § 87(2)(b) continued to advance after she pushed him, PO Au said, “I don’t think he realized that I was pushing him away. But he kept like—he was trying to figure out what’s happening to his friend, so I don’t think he realized I’m like pushing him away. I don’t remember exactly.” PO Au could not recall where PO Koncewicz was during this time and could not recall if he ever made physical contact with § 87(2)(b).

PO Au frisked § 87(2)(b)’s entire body to ensure that he did not have any weapons. When asked why she suspected § 87(2)(b) might have a weapon, PO Au said, “Well the way he came at us, and it was my partner who was already handcuffing his friend, and it was just me.” She described § 87(2)(b) as at least six feet tall and “really stocky,” and described her thought process as, “Okay, let me frisk him before he injures me and my partner while he’s handcuffing, or you know, doing his thing.” When asked if she had any other reason to suspect § 87(2)(b) had a weapon, PO Au said, “Well I know he had a hoodie, and we were all dressed in layers, cause it was cold. So I have to make sure he wasn’t carrying anything, you know hiding, concealing anything.” PO Au could not recall any further details about § 87(2)(b)’s clothing, other than that he wore a baggy hoodie and many layers. PO Au did not observe any bulges on § 87(2)(b)’s person. She did not suspect him of having a specific type of weapon and did not suspect him of having a weapon concealed on a specific part of his body.

PO Koncewicz made no observations of § 87(2)(b) and § 87(2)(b) as they were pulling over, but admitted that he “was not really paying attention to them” (BR13). After PO Ademola handcuffed § 87(2)(b) PO Koncewicz escorted him to the RMP and lodged him inside. PO Koncewicz insisted that he was focused upon safeguarding § 87(2)(b) and that his back was to § 87(2)(b)’s vehicle. He did not see § 87(2)(b) exit the vehicle but did eventually see him standing at the rear. He insisted that he could not recall if § 87(2)(b) exited before or after § 87(2)(b) was placed in the RMP, could not recall if § 87(2)(b) exited of his own

volition or was instructed to exit, could not recall how § 87(2)(b) was dressed, and could not recall if § 87(2)(b) was ever handcuffed. He could hear a conversation taking place at the rear of § 87(2)(b)'s vehicle but did not pay attention to it and did not know if PO Au or PO Ademola was speaking. PO Koncewicz denied seeing PO Au push § 87(2)(b) or make any physical contact with him, and denied seeing any officer frisk § 87(2)(b). He said there was nothing during the incident that indicated to him that § 87(2)(b) may have possessed a weapon.

A frisk is permissible only if an officer possesses reasonable suspicion that an individual is armed and dangerous. Arizona v. Johnson, 555 U.S. 323 (2009) (BR14).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore it is recommended that **Allegation A** be closed as **substantiated**.

- **Allegation B—Abuse of Authority: At 2444 East 22nd Street in Brooklyn, PO Lauren Au searched** § 87(2)(b)
Allegation C—Abuse of Authority: At 2444 East 22nd Street in Brooklyn, PO Krzystof Koncewicz searched § 87(2)(b)

§ 87(2)(b) alleged that all three officers took turns searching § 87(2)(b). § 87(2)(b) alleged that all three officers simultaneously entered his pockets and removed objects.

PO Au and PO Koncewicz both denied searching § 87(2)(b).

§ 87(2)(g)

Therefore it is recommended that **Allegations B and C** be closed as **unsubstantiated**.

- **Allegation D—Abuse of Authority: At 2444 East 22nd Street in Brooklyn, PO Idris Ademola searched § 87(2)(b)**

As previously discussed, the investigation was unable to interview PO Ademola or acquire his memo book as he is on long-term military leave until 2017. Therefore it is recommended that **Allegation D** be closed as **miscellaneous**.

- **Allegation E—Abuse of Authority: At 2444 East 22nd Street in Brooklyn, PO Idris Ademola searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.**
- **Allegation F—Abuse of Authority: At 2444 East 22nd Street in Brooklyn, PO Lauren Au searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.**
- **Allegation G—Abuse of Authority: At 2444 East 22nd Street in Brooklyn, PO Krzysztof Koncewicz searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.**

§ 87(2)(b) recounted that the officers all said they smelled marijuana and told § 87(2)(b) and § 87(2)(b) to give up the marijuana as it would only result in a summons. § 87(2)(b) and § 87(2)(b) insisted that they did not have any marijuana. PO Ademola asked § 87(2)(b) if he could search the vehicle and § 87(2)(b) said yes. All three officers allegedly searched the vehicle and continued to do so after PO Ademola lodged § 87(2)(b) in the RMP. Eventually PO Au found two strips of Suboxone that § 87(2)(b) had in his sun visor. The officers handcuffed § 87(2)(b) but removed his handcuffs after he produced a prescription for Suboxone. The officers allowed § 87(2)(b) to drive § 87(2)(b)'s vehicle from the scene.

§ 87(2)(b)'s account of the officers' search of the vehicle differed from § 87(2)(b)'s in multiple ways. He stated that PO Ademola came to the passenger window and asked § 87(2)(b) if he could look inside the glove compartment. § 87(2)(b) opened the compartment and PO Ademola saw \$4000 cash in bank bindings inside. The men explained that the money was used in § 87(2)(b)'s ATM business. § 87(2)(b) did not describe this taking place and specifically stated that he carried the \$4000 on his person during the incident. § 87(2)(b) further alleged that PO Au opened a rear door while the men were still in the vehicle and put her knee on the backseat while she searched inside bags on the backseat. § 87(2)(b) did not make such an allegation. § 87(2)(b) further alleged that, once he and § 87(2)(b) exited the vehicle and § 87(2)(b) was placed in the RMP, PO Au searched inside the vehicle. He specifically alleged that she searched in the center console and under the seats. § 87(2)(b) also alleged that the officers popped the trunk, but § 87(2)(b) specifically denied that this took place. § 87(2)(b) corroborated that PO Au found the Suboxone in § 87(2)(b)'s sun visor. § 87(2)(b) made contradictory statements regarding whether he or § 87(2)(b) consented to a search of the vehicle. He first said that he and § 87(2)(b) told the officers that “they could look for what they want” inside the vehicle, but he later insisted that neither he nor § 87(2)(b) ever told the officers they could search the vehicle.

PO Au recounted that, after § 87(2)(b) was placed under arrest, she leaned inside the opened driver's door and pushed on the sun visor. She did so because, as previously discussed, she observed § 87(2)(b) reach up to the sun visor when he was pulling over. She did not see an object in his hand, but his movement made her suspect that he could be putting a weapon in the sun

visor. She recounted, “I remember pushing the visor to make sure it wasn’t, you know, like something heavy was in there.” She did not open the visor and did not touch anything else in the vehicle. PO Ademola then leaned inside the car and came out holding a Suboxone strip. She said PO Ademola found the strip in the visor but did not see him find it. When asked if the officers ever asked to search the vehicle, PO Au said, “I believe so but I don’t remember exactly. It wasn’t me. I think it was either my two other partners. I’m not sure.” She could not recall with any greater specificity when she may have heard either of her partners ask to search the vehicle and could not recall if she ever heard § 87(2)(b) consent to a search of the vehicle. PO Au denied smelling marijuana during the incident and denied that there was ever any discussion of an odor of marijuana.

PO Koncewicz denied searching the vehicle and denied seeing any officer do so. He denied seeing either PO Ademola or PO Au remove anything from the vehicle. He never heard PO Ademola or PO Au ask to search the vehicle and did not hear § 87(2)(b) or § 87(2)(b) consent to a search. Once the officers were in the RMP and leaving the scene, either PO Ademola or PO Au told PO Koncewicz that a controlled substance was found in § 87(2)(b)s vehicle. PO Koncewicz did not learn where in the vehicle the controlled substance was found. PO Koncewicz denied that there was ever any discussion during the incident regarding an odor of marijuana.

Neither PO Au nor PO Koncewicz could positively recall hearing § 87(2)(b) or § 87(2)(b) consent to a search of the vehicle. § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(g)
§ 87(2)(b) Therefore it is recommended that **Allegation E, F, and G** be closed as **exonerated**.

- **Allegation H—Abuse of Authority: At the 61st Precinct stationhouse, PO Idris Ademola strip-searched § 87(2)(b)**

As previously discussed, the investigation was unable to interview PO Ademola or acquire his memo book as he is on long-term military leave until 2017. The command log entry for § 87(2)(b)s arrest does not indicate that he was strip-searched (BR15). Therefore it is recommended that **Allegation H** be closed as **miscellaneous**.

- § 87(2)(g), § 87(4-b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Pod: 2

Investigator:	_____	<u>Daniel Giansante</u>	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date